

6. 9:00 AM CASE NUMBER: C25-00312
CASE NAME: LISA ROSS VS. WILLIAM & WILLIAM REAL ESTATE AUCTION
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: FASIG, KELSEY
TENTATIVE RULING:

See Line 5.

7. 9:00 AM CASE NUMBER: C25-00641
CASE NAME: CYNTHIA NICKERSON VS. EPIC GAMES, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: EPIC GAMES, INC.
TENTATIVE RULING:

APPEARANCE REQUIRED BY COUNSEL REPRESENTING EACH PARTY – May appear remotely via ZOOM.

Counsel shall be prepared to inform this Court of **status** of the JCCP Coordination Proceedings, whether jurisdiction of all matters in this case lies with that Court or whether this Court retains jurisdiction over the present motion.

8. 9:00 AM CASE NUMBER: C25-01177
CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: VALIASHRAFI, NEDA
TENTATIVE RULING:

The Demurrer to the Cross Complaint is SUSTAINED, for the reasons set forth in the Demurrer, as to the First, Second, Fourth, and Fifth, causes of action, **with 14 days leave TO AMEND each** of those causes of action of the Cross Complaint.

The Sixth, Seventh and Eighth Causes of Action titled “harrassment” “use of Fictitious names” and “Harrassment and Threats,” respectively, are not valid recognized causes of action under California law and are not separate causes of action. The Sixth, Seventh and Eight Causes of Action do not state causes of action and are, therefore **sustained WITHOUT LEAVE TO AMEND**, as pled. The conduct alleged, however, may be included/subsumed by other valid causes of action as damages or explanatory of conduct contained in other causes of action.

9. 9:00 AM CASE NUMBER: C25-02220
CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE
*HEARING ON MOTION IN RE: RECONSIDERATION
FILED BY: YEE, NANCY NGUYEN
TENTATIVE RULING:

Introduction

Before the Court is Defendant’s Nancy Nguyen Yee and Robert Frank Yee’s (Defendants) for

reconsideration and modification of the Court's Attorney Fee Award of \$3,660.00 entered in connection with the Court's Order Denying Defendants' Motion to Expunge Lis Pendens.

This motion is limited exclusively to the fee award under CCP §405.38 and does not challenge the Court's substantive ruling on expungement.

This motion is made on the grounds that (1) Defendants acted with substantial justification under §405.38, and (2) the fee award relied on factual assumptions that are now clarified, constituting "new and different facts or circumstances" under §1008.

For the following reasons, **Defendants' Motion for Reconsideration is denied.**

Request for Judicial Notice

Plaintiffs request judicial notice of three exhibits. Exhibit 1 is a copy of the subject Complaint filed on August 4, 2025. Exhibit 2 is a copy of the Declaration of Brandon J. Mika in Support of Opposition to Defendants' Motion to Expunge Lis Pendens. Exhibit 3 is a copy of the tentative ruling regarding Defendants' Motion to Expunge the Lis Pendens, issued by the Court on November 6, 2025.

All three exhibits are filings of this instant case and are subject to judicial notice because they are records of this court. (Evid. Code §452(d).) Plaintiff's requests for judicial notice of Exhibits 1 through 3 are granted.

Factual Background

Loan History

On or about June 23, 2022, Nancy Nguyen Yee and Robert Frank Yee, executed a deed of trust securing a promissory note against real property commonly known as 2246 Lake Crest Court Martinez, CA 94553 ("Property") for \$640,000 ("Loan") in favor of Mortgage Electronic Registration Systems, Inc., as beneficiary, as nominee for Champions Funding, LLC, its successors and assigns. The deed of trust was recorded in the Official Records of Contra Costa County on June 24, 2022, as Document No. 2022-010385 ("2022 Deed of Trust") (Complaint ¶15.) MERS is the current beneficiary of the 2022 Deed of Trust. (Complaint ¶16.) On or about May 1, 2024, Shellpoint took over servicing of the Loan secured by the 2022 Deed of Trust after the acquisition of Specialized Loan Servicing, LLC. (Complaint ¶17.) Shellpoint is the current servicer of the Loan secured by the 2022 Deed of Trust. (Complaint ¶18.)

Procedural Background

2024 Yee Litigation and Attempted Payoff

On or about February 23, 2024, Robert Frank Yee and Nancy Nguyen Yee filed a lawsuit in the Contra Costa County Superior Court, Case Number C24-00387 against Specialized Loan Servicing, LLC, alleging that the Parties had entered into an accord and satisfaction agreement because Defendants had secretly written "Payment in Full" on their monthly mortgage statement. (RJN Ex. 1.)

After multiple demurrers were sustained, Robert Frank Yee and Nancy Nguyen sent a check for \$619,004.83 along with a subsequent payment for \$5,203.03 to purportedly satisfy the remaining

loan balance. Following the alleged payoff, the Parties quickly resolved the lawsuit and on May 30, 2025, a dismissal of the entire action with prejudice was filed with the Court. (Complaint ¶19.) After Robert Frank Yee and Nancy Nugyen Yee purportedly paid the remaining loan balance in full to Shellpoint for the Loan secured by the 2022 Deed of Trust, on or about April 15, 2025, a Substitution of Trustee and Full Reconveyance was executed, purporting to reconvey the 2022 Deed of Trust. The Reconveyance was recorded in the Contra Costa County Recorder's Office on April 16, 2025, as Document Number 2025-0036152 ("Reconveyance"). (Complaint ¶20.)

On or about May 5, 2025, the checks paid by Robert Frank Yee and Nancy Nguyen Yee for \$619,004.83 and \$5,203.03 bounced for insufficient funds. As a result, the Loan was not satisfied. However, by the time the checks had bounced, the 2022 Deed of Trust had been reconveyed. (Complaint ¶21.)

The 2022 Deed of Trust was erroneously reconveyed following the fraudulent payoff that was returned for insufficient funds. At the time the 2022 Deed of Trust and promissory note were executed, the parties to the 2022 Deed of Trust intended for the 2022 Deed of Trust to be recorded as an encumbrance against the Subject Property until the subject Loan was fully paid off. The Loan secured by Plaintiffs' 2022 Deed of Trust has not been paid off. As a result, the 2022 Deed of Trust should not have been reconveyed. (Complaint ¶¶ 22-24.)

Since Reconveyance, Defendants have taken numerous actions to try and prevent Plaintiffs from reinstating the security, including but not limited to transferring the Property to a trust, entering a purported loan secured by a deed of trust, and encumbering the Property with a UCC Financing Statement. (Complaint ¶¶ 26-30.)

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, "based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 ("*Brown*").) "This authority derives from the judiciary's fundamental, constitutionally mandated function to resolve specific controversies between the parties." (*Brown*, 47 Cal.4th at 1248.)

Analysis

Attorney's Fees Under CCP 405.38

"The court shall direct the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of

attorney's fees and costs unjust." (Code Civ. Proc., § 405.38 (Deering).) "When a lis pendens is withdrawn while a motion to expunge is pending, a moving party is not automatically entitled to attorney fees, nor automatically denied attorney fees, under CCP § 405.38. Instead, based on the practical approach to the award of attorney fees, the trial court has the discretion to award attorney fees based on a determination of which party would have prevailed on the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust." (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010.)

Defendants Meet and Confer Efforts

Defendants contend that they engaged in multiple communications with Plaintiffs' counsel before filing their Demurrer and related pleadings and that this clarification constitutes new and different facts. (Motion at p. 3: 12-14.)

Defendants took the Court's analysis out of context. The Court took note of Defendants' meet and confer efforts for the Demurrer, but Defendants artfully omit any meet and confer process for the Motion to Expunge Lis Pendens. The previous ruling simply notes that Defendants did not meet and confer, but Plaintiffs' counsel advised Defendants prior to filing their Opposition that the Motion was deficient and if it was not withdrawn and they were forced to file an opposition, they would be seeking their attorney's fees. (RJN Ex. 3 [citing RJN Ex. 2].) The Court is aware of both Parties' meet and confer efforts on the Demurrer and the Motion to Expunge Lis Pendens, and any of the meet and confer efforts discussed previously does not constitute new or different facts, law or circumstances. It is therefore not proper grounds to seek reconsideration.

Defendants' Substantial Justification Argument

Defendants argue that they acted with substantial justification because their motion relied on recorded public documents and Plaintiffs presented no admissible evidence in their opposition papers to Defendants' Motion to Expunge Lis Pendens. (See Motion at p. 2: 6-9; Robert Frank Yee Decl. ¶ 2.) The Court finds neither point persuasive.

First, Plaintiffs did present admissible evidence in the form references to its verified Complaint. Notably, "a plaintiff may rely on a verified complaint to oppose a motion to expunge a lis pendens." (*Coppinger v. Superior Court* (1982) 134 Cal.App.3d 883 [holding it would be unfair to hold Plaintiff to a higher standard, especially before discovery has begun].)

Second, although Defendants contend that they did rely on recorded public documents, giving them a reasonable basis to file the Motion to Expunge Lis Pendens, they did not once in their Motion explain Plaintiffs' allegations of the checks for \$619,004.83 along with a subsequent payment for \$5,203.03 that bounced on May 5, 2025. (Complaint ¶ 19.) Although Defendants argue substantial justification due to relying on recorded public documents the absence of explanation of the rescission of the reconveyance, Exhibit J to their RJN in Support of their Motion to Expunge Lis Pendens, is deafening. (Defendants' RJN ISO Motion to Expunge Lis Pendens ¶10.)

Conclusion

Based on the above, **Defendants' Motion for Reconsideration is denied.**